He has to ensure that the policies of the government do not go against public interest. His voice is final in policy decisions of the State Government.

- He plays an important role in making higher appointments of the State Government. The Governor appoints different higher officials of the State Government on the advice of the Chief Minister and his Council of Ministers.

The Legislature

In India, the State Legislature consists of the Governor and one or two houses. The upper house is called the Legislative Council while the lower house is called the Legislative Assembly.

states with bicameral legislature



Legislative Council

- The Constitution provides that the total strength of the Legislative Council must not be less than 40 and not more than 1/3 of the total strength of the Legislative Assembly of the State. The members of the Legislative Council are elected indirectly.
- One third of its members are elected by the local government bodies like the District Panchayat and Municipalities.
- Another one third is elected by the members of the Legislative Assembly.
- One twelfth is elected by the graduates of the constituency and another one twelfth by the teachers of secondary schools, colleges and universities.



At present, only six states in India have Legislative Council in their legislature. They are Bihar, Uttar Pradesh, Maharashtra, Karnataka, Andhra Pradesh and Telangana.

- One sixth of the members of the Legislative Council are nominated by the Governor of the State.

The Legislative Council is a permanent house. One-third of its members retire every two years and elections are held to fill the vacant seats. The members are elected for a term of six years. To be a member of the Legislative Council, one must be a citizen of India and should have completed 30 years of age. He cannot be a member of the Legislative Assembly or either of the houses of the Parliament. The Chairman is the presiding officer of the Legislative Council. In his absence, the Deputy Chairman presides over its meetings. They are elected from among the members of that house.

Legislative Assembly

The people who make the laws of a state government are called 'Members of the Legislative Assembly' (MLA). MLAs are chosen from different constituencies. For the election of MLAs the entire state is divided into different constituencies. These constituencies are called the legislative constituencies. One legislative constituency may have one lakh or even more people. One MLA is chosen from each legislative constituency to represent that legislative assembly.

Election to the Assembly

Different political parties compete in the elections to the legislative assembly. These parties nominate their candidates from each constituency. The candidate is that person who contests for the election and asks people to vote for him. A person has to be at least 25 years old to contest for election to the legislative assembly. One person can stand for election in more than one constituency at the same time. Even if a person does not belong to any political

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